

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT, and THIRD-PARTY COMPLAINANT

v.

SAMSUNG ELECTRONICS COMPANY, LTD, SAMSUNG SDS GLOBAL SCL ASIA

PACIFIC PTE LTD and SAMSUNG LOGITECH COMPANY, LIMITED,

THIRD-PARTY RESPONDENTS.

JOINT STATUS REPORT

Pursuant to the September 12, 2025, Order on the Fourth Joint Motion for Extension of Time (“Order”) (Doc. 76), Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, COSCO Shipping Lines Co., Ltd. (“COSCO”) (collectively, the “Parties”), submit this Joint Status Report.

The Parties, by their respective undersigned counsel, have met and conferred in an attempt to resolve as many discovery issues amongst themselves as possible. The Parties have exchanged numerous discovery-related letters, and counsel for the Parties have met and conferred by videoconference on September 18th, October 8th, October 15th, and November 17th.

During the October 15th and November 17th meetings, counsel for SEA and COSCO discussed the status of ongoing discovery and proposals to extend and modify the discovery schedule. During the October 15th meeting, counsel for the Parties discussed the status of discovery and the possibility of filing a motion to extend and modify the discovery schedule to include more time for fact discovery and add a schedule for expert discovery. However, due to the federal government shutdown, including the Commission, counsel for the Parties concluded that filing such a motion during the shutdown would be ineffective and potentially inappropriate. Instead, the Parties agreed to proceed with discovery and defer filing a motion until after the shutdown concluded.

On November 12, counsel for COSCO requested another meeting with counsel for SEA, which was held on November 17, 2025. During this meeting, SEA and COSCO counsel again discussed options and proposals for extending and modifying the discovery schedule. Further updates on the status of discovery are provided below.

I. Documents Produced

A. SEA's statement.

SEA has materially completed its production of documents save two limited matters which COSCO clarified its requests to SEA on. In total, SEA produced documents with bates ranges SEA 000001-2098549. That is, SEA has produced over 2 million pages of documents to COSCO in response to its document requests.

SEA submits additional time is necessary to develop a full and complete record. Without an extension, SEA's ability to prepare its case and meet subsequent deadlines will be significantly compromised. Any deposition taken of COSCO personnel would be incomplete, as it would be subject to documents that COSCO will be producing at a later date. Additional time is necessary

so as not to prejudice SEA while COSCO completes its production of documents in the United States, Korea, and China. But SEA is not able to make a proper assessment of the time needed, on the current record, because the information to estimate the time needed for COSCO to complete its production is within the control of COSCO.

The Parties are currently in discussions on whether a motion for extension of the scheduling order can be filed jointly, and COSCO has provided a proposed schedule, which SEA is reviewing.

B. COSCO's statement.

As of the date of this joint status report, COSCO has produced 246,881 documents, comprised of 652,440 pages, as shown in the following table:

#	Date of Production	Bates Range
1	July 18, 2025	COSCO0000001 – COSCO0006583
2	August 15, 2025	COSCO0006584 – COSCO0009599
3	August 29, 2025	COSCO0009600 – COSCO0192151
4	September 2, 2025	COSCO0192152 – COSCO0199137
5	September 26, 2025	COSCO0199138 – COSCO0200355
6	October 2, 2025	COSCO0200356 – COSCO0237331
7	October 6, 2025	COSCO0237332 – COSCO0305155
8	October 17, 2025	COSCO0305156 – COSCO0565160
9	October 20, 2025	COSCO0565161 – COSCO0566203
10	October 21, 2025	COSCO0566204 – COSCO0572351
11	October 29, 2025	COSCO0572352 – COSCO0577047
12	November 5, 2025	COSCO0577048 – COSCO0597136
13	November 12, 2025	COSCO0597137 – COSCO0624910
14	November 14, 2025	COSCO0624911 – COSCO0652440

COSCO continues to produce documents on a rolling basis and is processing and reviewing additional documents filtered down from the 1.3 terabytes of data it initially collected from its U.S. custodians. COSCO expects to make at least one more large production of documents from U.S. custodians within the next two weeks.

Additionally, COSCO is obtaining documents and information for production in China and South Korea. Collecting and processing documents for production has been difficult, time

consuming, and uncertain due to technical difficulties with some collected data and China's law for the protection of state secrets, which was amended in 2024. COSCO is working with Chinese counsel to facilitate its document processing and review efforts for approximately 261 gigabytes of data in China. COSCO is also processing for review approximately 106 gigabytes of data from South Korea.

In response to the Parties' meetings and conferrals about discovery responses, COSCO also supplemented its discovery responses by producing a spreadsheet with details about nearly 16,000 SEA shipments. The spreadsheet generated by COSCO was not a simple or routine task; rather, it required significant time and effort over a 29-day period.

To allow additional time for completion of ongoing fact discovery and a fair process for expert discovery, COSCO intends to file a motion shortly requesting an extension and modification of the discovery schedule. COSCO provided a proposed schedule to SEA for review.

MOTIONS SUBMITTED

SEA's motion to dismiss COSCO's counterclaim (Doc. 43), third party respondent Samsung SDS Asia Pacific Ltd.'s motion to dismiss (Doc. 58) COSCO's third-party complaint, and third-party respondent Samsung Electronics Co., Ltd.'s motion to dismiss COSCO's third-party complaint (Doc. 65), and non-party Samsung SDS America, Inc.'s motion to quash subpoena (Doc. 80) have been fully briefed. Samsung Electronics Logitech Co., Ltd. moved to dismiss COSCO's third-party complaint on November 14.¹

¹ The third-party respondents' motion to dismiss COSCO's third-party complaint for improper service (Doc. 44) and COSCO's motion to permit alternative service (Doc. 48) have been briefed; COSCO has since obtained service on each of the third-party respondents under the Hague Convention.

Respectfully Submitted,

Dated: November 17, 2025

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